

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 10  
Honorable Mark D. Flanagan  
(Covering for Honorable Jeffrey B. El-Hajj)**

B. Than, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2228

**DATE: August 4, 2026      TIME: 9:00 & 9:01 A.M.**

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856  
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all parties before 4:00 P.M. the day prior to the hearing  
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be  
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

| LINE #                 | CASE #     | CASE TITLE                                                           | RULING                          |
|------------------------|------------|----------------------------------------------------------------------|---------------------------------|
| <a href="#">LINE 3</a> | 25CV472404 | Theerapong Surinsuk v.<br>Volkswagen Group of America Inc.<br>et al. | Off-calendar, case has settled. |

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|------------------------|------------|------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 4</a> | 25CV482241 | Morgan McNeil v. Cornerstone Community Church et al. | <p>In this action for breach of contract, etc., declaratory and other relief, Defendant Cornerstone Community Church has filed a motion for change of venue and moves for reclassification of the case as a limited civil case or small claims case (the “Motion”). Defendant also seeks attorney’s fees.</p> <p>Plaintiff has not responded to the Motion. There is, however, no proof of service that the Motion and accompanying papers were served on Plaintiff.</p> <p>In view of the lack of proof of service, the hearing is continued to February 18, 2027, at 9:00 a.m. in Department 10. Defendant is ordered to file a new notice, serve the notice, the motion and all materials submitted in support of the motion on Plaintiff and file a proof of service.</p> <p>Defendant to prepare final order for court’s signature.</p> |